

		Taken together, these circumstances provided an objectively reasonable basis in both law and fact for Plaintiffs to contend that their lease conferred a continuing right to possession and to oppose expungement of the lis pendens. Although the Court ultimately rejected Plaintiffs' position, that adverse determination does not establish that their position lacked substantial justification. Second, Defendant Enderle filed a "joinder" with a limited memorandum that was largely duplicative of the arguments made by Defendant Pearson, the party who brought the motion to expunge. (See ROA 75.) However, the relief sought is not the type of relief that is afforded on an individual basis. In other words, if the moving party, Defendant Pearson, was entitled to expunge the lien, then the relief granted would have applied to all persons affected by the lien, regardless of whether they "joined in" the original motion or filed a separate motion. Accordingly, the motion is denied. Plaintiffs shall give notice of the ruling.
7.	2025-1528928 Handy vs. Exodus Cry, Inc.	Defendant Exodus Cry, Inc.'s demurrer to plaintiff Bridget Handy's first amended complaint ("FAC") is sustained with 21 days' leave to amend. Specifically, Plaintiff is granted leave to file her proposed second amended complaint ("SAC"). In her opposition, Plaintiff tacitly concedes the merits of the demurrer to the FAC and seeks to file her proposed SAC. <u>Legal Standard</u> The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. Code Civ. Proc. § 473(a)(1). The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. Code Civ. Proc. § 473(a)(1). Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. Code of Civ. Proc. § 576. Ordinarily, the court does not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. <i>Kittredge Sports Co. v. Superior Court (Marker,</i>

		<i>U.S.A.</i>) (1989) 213 Cal.App.3d 1045, 1048; Cal. Prac. Guide, <i>Civil Procedure before trial</i> (Rutter) 6:644. Grounds for demurrer or motion to strike are premature. <i>Id.</i> After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. <i>Id.</i> See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 (“[W]e believe that the better course of action would have been to allow Atkinson to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”) (citing <i>Kittredge</i>). California courts generally allow great liberality, at all stages of the proceeding, in permitting the amendment of pleadings in order to resolve cases on their merits. <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461. This liberal policy applies only so long as there is no prejudice to the opposing party. <i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564. Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party are shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. <i>Estate of Murphy v. Gulf Ins. Co.</i> (1978) 82 Cal.App.3d 304, 311. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 490; <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal.App.4th 168, 176; <i>Fisher v. Larsen</i> (1982) 138 Cal.App.3d 627, 649. <u>Discussion</u> This case began on December 1, 2025. Any delay by Plaintiff in alleging specific facts has been minimal. Nor has Defendant asserted prejudice from any delay. There is no trial date, and Defendant makes no claim that discovery will need to be redone. While Defendant objects that Plaintiff’s new physical injury claims are barred by workers’ compensation, that is only a portion of the SAC and can be addressed by demurrer to the SAC. Accordingly, Defendant’s demurrer is sustained and Plaintiff has leave to file her proposed SAC.
8.	2025-1481901 Global Axxis, LLC vs. Foldum Corporation	<i>The Court is tentatively inclined to sustain Defendants Foldum Corporation, Travis Zieman, James A. Shortill, Robert Reynolds, Aaron Zieman, and Niah Zieman’s demurrer to Plaintiff Global Axxis, LLC’s First Amended Complaint as to the second, third, and seventh causes of action, with leave to amend within 20 days, and</i>